

US Importation, Customs & FDA Enforcement

FD&C Act Importation and Refusal of Admission

Title: Importation and Refusal of Admission of FDA-Regulated Products

Jurisdiction: International

Category: International

Source Citation: Federal Food, Drug, and Cosmetic Act (FD&C Act), §801(a)(b); 21 U.S.C. §381(a)(b)

Plain English Summary:

FDA has authority to examine products being imported or offered for import into the United States. If an imported product appears to be adulterated, misbranded, manufactured under insanitary conditions, restricted in its country of origin, or otherwise in violation of applicable FDA requirements, FDA can refuse its admission into the United States.

For an Ayurvedic startup importing drugs, dietary supplements, cosmetics, or other FDA-regulated products, this means U.S. compliance must be established before or at the time of importation not merely after the product enters the country.

The Exact Legal Text:

21 U.S.C. §381(a) Imports; examination and refusal of admission

The Secretary of the Treasury shall deliver to the Secretary of Health and Human Services, upon his request, samples of food, drugs, devices, tobacco products, and cosmetics which are being imported or offered for import into the United States, giving notice thereof to the owner or consignee, who may appear before the Secretary of Health and Human Services and have the right to introduce testimony.

If it appears from the examination of such samples or otherwise that (1) such article has been manufactured, processed, or packed under insanitary conditions ... or (2) such article is forbidden or restricted in sale in the country in which it was produced or from which it was exported, or (3) such article is adulterated, misbranded, or in violation of section 355 of this title ... then any such article described in any of clauses (1) through (5) shall be refused admission, except as provided in subsection (b) of this section.

If it appears from the examination of such samples or otherwise that the article is a counterfeit drug or counterfeit device, such article shall be refused admission.

The Secretary of the Treasury shall cause the destruction of any such article refused admission unless such article is exported ... within 90 days of the date of notice of such refusal or within such additional time as may be permitted pursuant to such regulations...

21 U.S.C. §381(b) Disposition of refused articles

Pending decision as to the admission of an article being imported or offered for import, the Secretary of the Treasury may authorize delivery of such article to the owner or consignee upon the execution by him of a good and sufficient bond providing for the payment of such liquidated damages in the event of default as may be required pursuant to regulations of the Secretary of the Treasury.

If it appears to the Secretary of Health and Human Services that (1) an article included within the provisions of clause (3) of subsection (a) of this section can, by relabeling or other action, be brought into compliance with this chapter ... final determination as to admission of such article may be deferred...

Keywords/Triggers:

FDA import refusal, Ayurvedic product import USA, refused admission, FDA import compliance, adulterated imported product, misbranded imported product, 21 USC 381, FD&C Act Section 801

FDA Import Process Entry Review and Admissibility

Title: FDA Entry Review and Admissibility of Imported Products

Jurisdiction: International

Category: International

Source Citation: U.S. Food and Drug Administration (FDA), FDA Import Process — Entry Review; implementing authority under Federal Food, Drug, and Cosmetic Act (FD&C Act), §801, 21 U.S.C. §381

Plain English Summary:

FDA-regulated products offered for import into the United States are reviewed to determine whether they are **admissible into U.S. commerce**. Import information is generally submitted through U.S. Customs and Border Protection (CBP), which refers FDA-regulated products to FDA for review. FDA may release the product, request additional documents or examination, or request detention when the product appears to violate FDA requirements.

For an Ayurvedic startup, this means that having a product manufactured legally in India is **not by itself sufficient** for U.S. entry. The importer must provide accurate entry information and the

product must satisfy the FDA requirements applicable to its classification such as drug, dietary supplement, or cosmetic.

The Exact Legal/Regulatory Text:

FDA Entry Review Official FDA guidance:

Any FDA-regulated product offered for import into the United States must comply with the same standards as domestic products.

Upon offering the goods for import, the FDA determines whether products are admissible into U.S. commerce and may refuse entry of any products that violate or appear to violate FDA's laws and regulations.

For most shipments, the first step in the importation process is submission of entry information to U.S. Customs and Border Protection (CBP). If the shipment contains FDA-regulated products, CBP sends data about those products to the FDA for review under a Customs entry number.

FDA entry reviewers use internal databases to assist in the review process.

Based on the results of the initial human review, an ImportShield (FISP) reviewer may take one or more of the following actions:

Release the product

Request additional information...

Request detention of the product.”

An examination may consist of any combination of a field examination, label examination and/or sample collection.

FDA-regulated products ... may not be distributed into U.S. commerce until FDA has determined their admissibility.

Important database note: This is an **FDA administrative/import procedure**, not a separate Act passed by Congress. The underlying statutory import authority is **FD&C Act §801 / 21 U.S.C. §381**. So we should keep the FDA procedure in the database, but clearly distinguish it from the statute.

Keywords/Triggers:

FDA entry review, FDA import process, product admissibility USA, Ayurvedic product import, CBP FDA entry, FDA detention, FDA product release, imported product compliance

FDA Import Alerts Detention Without Physical Examination (DWPE)

Title: Import Alerts and Detention Without Physical Examination

Jurisdiction: International

Category: International

Source Citation: Federal Food, Drug, and Cosmetic Act (FD&C Act), §801; 21 U.S.C. §381; FDA Import Alerts / Detention Without Physical Examination (DWPE)

Plain English Summary:

FDA may place products or firms on an **Import Alert** when there is a history or evidence of violations. When a product is subject to **Detention Without Physical Examination (DWPE)**, FDA can detain future shipments without physically examining or testing every shipment; the importer must provide sufficient evidence to overcome the appearance of the violation before the product can be released.

For an Ayurvedic startup importing products into the U.S., an Import Alert can therefore result in shipments being **detained at entry and potentially refused** unless the importer demonstrates compliance with the applicable FDA requirements.

The Exact Legal/Regulatory Text:

FDA Import Alerts:

Import Alerts are used to protect consumers against products with a history of known violations. FDA can place a product on an Import Alert after discovering a violation and then detain future shipments of the product without having to test or otherwise physically examine it. FDA refers to this as detention without physical exam' or DWPE.

If a product subject to DWPE is offered for import, it will be detained and refused unless the importer can overcome the appearance of the violation(s) by demonstrating to the FDA that the product does not have the violation(s) listed on the import alert.

FDA identifies **FD&C Act §801 (21 U.S.C. §381)** as the statutory authority allowing FDA to refuse products that appear to violate FDA laws and regulations.

Important: An **Import Alert is not itself an Act or regulation**. It is FDA enforcement guidance identifying products/firms for which DWPE may be appropriate. The underlying statutory authority is **FD&C Act §801 / 21 U.S.C. §381**.

Keywords/Triggers:

FDA Import Alert, detention without physical examination, DWPE, Ayurvedic product detention, FDA shipment hold, FDA import violation, refused import, FDA import enforcement